9070

MASTER SERVICES AGREEMENT

UPS Supply Chain Solutions, Inc., with offices located at 12380 Morris Road, Alpharetta, Georgia 30005 ("SCS") and Actavis, Inc., with offices located at 990 Riverview Drive, Totowa, NJ 07512 ("Client") (each a "Party" or in the aggregate "Parties") hereby enter into this Master Services Agreement ("MSA") effective November 6, 2006 ("Effective Date").

NOW, THEREFORE, Client and SCS, for good and valuable mutual consideration, hereby agree as follows:

1. Structure of the Agreement. SCS or its designated affiliate shall provide the services ("Services") specified in service schedules ("Schedules") referencing this MSA and executed by the Parties. Each Schedule may have attached one or more statements of work ("SOWs") and exhibits. Each such Schedule, SOW, and exhibit is an "Incorporated Document." This MSA and the Incorporated Documents are the "Agreement." In the event of a conflict between the terms of this MSA and the terms of any Incorporated Document, the terms of this MSA shall control; provided however, the Parties may expressly or specifically authorize in writing that a particular term or terms of an Incorporated Document shall control over a particular term of this MSA and then only to the extent provided in such Incorporated Document.

2. Term and Termination.

2.1 Term. The Initial Term of this MSA begins on the Effective Date and continues up to and including November 5, 2009, thereafter, this MSA may be terminated when either (a) all Incorporated Documents have expired or have been terminated in accordance with their terms, or (b) this MSA is terminated in accordance with its terms, in which case all Incorporated Documents will also terminate, subject to their respective termination provisions.

2.2 Termination. This MSA or any Schedule or SOW may be terminated by either Party: (a) without cause after the Initial Term upon one hundred twenty (120) days prior written notice; (b) with cause upon the commission of a material breach of this Agreement which is not cured within sixty (60) days after the breaching Party receives notice (except for default in payment which is addressed below); or (c) if the other Party becomes insolvent or bankrupt. Notwithstanding the above, SCS may also terminate this MSA or any Schedule or SOW upon any failure of Client to pay when due any amounts due hereunder, which failure remains uncured for a period of ten (10) days after notice thereof.

3. Fees, Charges and Expenses.

3.1 Fees, Charges and Expenses. Client shall pay to SCS all fees, charges and expenses ("Fees") as specified in this Agreement with no right of set-off for any claim filed against SCS. If Client in good faith disputes an amount set forth on an invoice, Client shall pay the undisputed amount and shall promptly notify SCS of such dispute and work in good faith with SCS to promptly resolve the disputed amount. If the Parties are unable to resolve the disputed amount within thirty (30) days from the date Client notifies SCS of the dispute, such dispute shall be resolved in accordance with the dispute resolution process set forth in Section 14 of this Agreement. The Fees set forth therein may be adjusted at any time by mutual written agreement of both Parties. All Fees will be billed and paid in U. S. dollars, unless otherwise provided in a Schedule.

3.2 Surcharges. Client shall pay all actual fuel, security or other surcharges ("Surcharges") that may be imposed on SCS by law or by governmental agencies. Client also agrees to pay actual Surcharges imposed on SCS by its providers, including its affiliates provided that SCS uses commercially reasonable efforts to minimize Surcharges and SCS generally applies the Surcharges across its customer base.

3.3 Late Payments. If Client fails to make a payment of the Fees when due, Client shall pay to SCS a late payment charge at the rate of one and one-half percent (1.5%) per month or, if lower, the highest rate allowed by applicable law. The late payment charge shall be calculated from the date that the Fees become due and shall be compounded monthly for the period during which any such Fees remain unpaid.

3.4 Taxes. Client agrees to pay, indemnify and hold SCS and its affiliates harmless from and against all sales, use, personal property, gross receipts, excise, franchise and business taxes (including any penalties, fines or interest thereon), except for taxes on revenue earned by SCS, imposed by any federal, state or local government or taxing authority with respect to the Services performed by SCS under this Agreement.

3.5 Changes in Operating Parameters or Conditions. Client acknowledges and agrees that SCS calculated the Fees based on and in reliance upon certain key assumptions or design criteria supplied to SCS by or on behalf of Client ("Operating Parameters"). Such assumptions are set forth in the applicable Incorporated Documents. In the event that Client requirements cause a change in any Operating Parameter (i.e., a change that is encountered over the course of time and is anticipated to be ongoing), causing a change in SCS operating costs or a "Changed Condition," (as defined below), SCS will propose an appropriate adjustment to the Fees. If the Parties are unable to agree upon the proposed adjustment within ten (10) days of SCS's notice of such adjustment, either Party may submit the Dispute for resolution as set forth in Section 14. Any adjustments to fees will be retroactive to date of notice. "Changed Condition" means the enactment or promulgation of any new law or regulation or the imposition of a new material condition on the issuance or renewal of any permit, license or approval after the Effective Date hereof that: (a) materially increases the obligations or costs of SCS or adversely affects the ability of SCS to perform the Services, or (b) materially decreases

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the Fees to which SCS would otherwise be entitled under an Incorporated Document. SCS also disclaims any liability for failure to meet performance commitments due to Changed Conditions, unless SCS specifically agrees in writing to the contrary.

3.6 SAS 70 Reporting. If Client requests a SAS 70 report that addresses SCS's internal controls related to Services, SCS will work with Client to provide a service auditor's report that complies with GAAP. Client acknowledges that any such SAS 70 report provided to Client will contain Confidential Information of SCS, and Client agrees to treat any SAS 70 report provided to Client by SCS as Confidential Information of SCS in accordance with the terms of this Agreement. Client will be responsible for payment of all costs related to providing the requested report, not to exceed $100,000 (U.S.) per report, unless the service that SCS provides to Client involves a unique operating system or is a highly customized operation, in which case the Parties will mutually agree on the cost, in writing, prior to SCS initiating preparation of any requested SAS 70 report. Client agrees that the SAS 70 report process will be conducted by SCS through an external auditor. SCS will be responsible to remediate any exceptions that are solely the responsibility of SCS, however, SCS does not provide any assurance that any SAS 70 report requested by Client will be unqualified during any reporting period. To initiate the preparation of a SAS 70 report, Client must make a written request 180 days prior to the requested SAS 70 report date. SCS will prepare no more than one report in any twelve (12) month period.

4. Indemnification.

4.1 General Indemnification. Each Party ("Indemnitor") shall indemnify, defend and hold harmless the other Party and any affiliated and controlling entities of such Party, and the directors, employees, officers, agents, subcontractors, licensors and suppliers of all of them (in each case "Indemnitee") from and against all third party liabilities, claims, suits, demands, actions, fines, damages, losses, costs and expenses (including reasonable attorneys' fees) ("Claims") for injury to or death of any person or damage to or loss of improvements to real property or tangible personal property to the extent caused by or resulting from such Party's negligent acts or omissions or those of its employees or agents, except to the extent caused by the Indemnitee; provided, however, that this Section shall not apply to any loss or destruction of, or any damage to, Client's products and property for which Services are provided ("Products").

4.2 Third Party Claims.

4.2.1 Client shall indemnify, defend and hold harmless SCS and its Indemnitees from and against any third party Claim (including any Claim brought by Client's customer) including but not limited to third party Claims arising out of or in connection with the design, manufacture, packaging, distribution, delivery, marketing, use or sale of the Products or Services or Client's instructions regarding such Products, except to the extent such Claims are attributable to the negligence or willful misconduct of SCS or SCS's breach of this MSA..

4.2.2 Client shall further indemnify and hold harmless SCS from and against any and all claims, demands, actions, causes of action, losses, judgments and damages, brought or alleged by a third party, and any and all costs or expense relating thereto (including but not limited to attorney's fees, court costs and costs of settlement) arising as a result of any actual or asserted violation of the Federal Food, Drug, and Cosmetic Act or any other federal, state, or local law or regulation by virtue of which Products supplied or delivered by Client shall be alleged or determined to be adulterated, misbranded, mislabeled or otherwise not in full compliance with any such law or regulation, except to the extent any claim regarding an adulterated product is attributable to SCS's negligence or willful misconduct or SCS's breach of this MSA.

4.3 Indemnification Procedures. Regarding a Claim, the Indemnitor shall provide Indemnitee with a) prompt written notice, b) tender of the defense or settlement, and c) full cooperation in the defense. Failure to give prompt written notice of a Claim shall not affect the Indemnitee's right to indemnification unless the failure materially and adversely affects the rights, remedies or liability of the Indemnitor. If the Indemnitor fails to honor a timely request for indemnification and has a binding legal obligation to do so, the Indemnitee shall be entitled to all costs (including reasonable attorneys' fees) incurred in the enforcement of its indemnification rights. Indemnitor shall not make a compromise or settlement of a Claim without the Indemnitee's consent unless all of the following apply: (a) there is no finding or admission of any violation of law or any violation of any person's rights by Indemnitee, (b) there is no effect on any other Claim by or against Indemnitee, (c) the sole relief is monetary damages that are paid by the Indemnitor, and (d) the compromise or settlement contains an unconditional requirement to provide by the claimant or the plaintiff to the Indemnitee a release from all liability in respect of such Claim. The Indemnitee shall have no liability for any compromise or settlement made without its consent.

5. Title to Products. Unless otherwise specified in a Schedule, title to Products shall remain at all times with Client and shall not pass to SCS under any circumstances unless otherwise specifically provided in this Agreement.

6. Limitation of Liability.

6.1 Limitation of Liability for Loss or Damage to Products. Except as specifically provided in a Schedule or SOW, SCS's maximum liability to Client arising out of or related to loss or damage to Products shall not exceed the SCS standard liability amounts which are as follows (the "SCS Standard Liability Limits"): (a) for Claims arising from SCS's warehousing, fulfillment and consolidation Services occurring in SCS's facilities or premises, including owned or leased property, $0.50 per pound; (b) for Claims arising from SCS's customs brokerage Services, $50 per entry or the amount of brokerage fees paid to SCS related to the

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entry, whichever is less; (c) for Claims arising from SCS's freight forwarding or motor broker Services, including arranging for inland or air transportation, $50 per shipment; and (d) for Claims arising from air, ground or ocean transportation, the liability limits set forth in the bills of lading, air waybills, or other transportation documents issued in conjunction with the Services; provided, however, if a bill of lading or other transportation document issued in conjunction with ground transportation Services does not include a liability limit, SCS's liability limit shall be $0.50 per pound. Client and SCS agree that they have negotiated a reasonable limit of liability based on the value of the Products and the Parties' respective business interests and rates charged. Client may obtain additional protection in excess of the SCS Standard Liability Limits, up to the actual or declared value of the Products, shipment or transaction, by written request and payment of an additional charge prior to the provision of Services. Client waives all rights of subrogation on behalf of its insurers for any loss or damage in excess of the SCS Standard Liability Limits set forth herein, or if applicable, such different limits of liability specified in a Schedule or SOW. Notwithstanding the foregoing, SCS shall not be liable for delay, loss or damage of any kind which occurs while Products are in the care, custody or control of a third party unless otherwise provided in SCS's transportation documents or an Incorporated Document. "Third party" as used herein includes, but is not limited to, carriers, warehouseman, forwarders, ocean transportation intermediaries, customs brokers, affiliates, brokers, or agents to which Products are entrusted for transportation, handling, delivery, and/or storage. All claims in connection with acts of a third party shall be brought against the third party. SCS shall reasonably cooperate with Client regarding such claims.

6.2 Filing of Claims. Unless otherwise expressly required by applicable statute, international convention or other mandatory national law, (a) all claims against SCS for a potential or actual loss (except arbitration claims) must be filed in writing within sixty (60) days after the event giving rise to the claims, or such claims are deemed waived, except that the claims filing requirements set forth in a bill of lading, air way bill or other transportation document issued in conjunction with the Services shall apply for claims arising from loss or damage to Products, and (b) all arbitration claims against SCS must be filed within nine (9) months after the event giving rise to the claims, or such claims are deemed waived. No settlement will be made on any claim made by Client until Client has paid all outstanding Fees.

7. Exclusions. IN NO EVENT WILL EITHER PARTY BE LIABLE TO THE OTHER PARTY FOR ANY SPECIAL, PUNITIVE, CONSEQUENTIAL OR INDIRECT DAMAGES OR FOR PURELY ECONOMIC LOSSES, INCLUDING, BUT NOT LIMITED TO, LOSS OF PROFITS, INCOME, BUSINESS OPPORTUNITIES, MERCHANTABILITY, OR CLIENT GOODWILL IN CONNECTION WITH THIS AGREEMENT OR THE SERVICES PROVIDED HEREUNDER WHETHER PLED UNDER TORT, CONTRACT OR ANY OTHER LEGAL THEORY. SCS SHALL HAVE NO LIABILITY TO CLIENT IN CONNECTION WITH THIS AGREEMENT EXCEPT AS EXPRESSLY SET FORTH IN THIS AGREEMENT. THIS EXCLUSION APPLIES TO DAMAGES OF ANY KIND, INCLUDING BUT NOT LIMITED TO, PERSONAL INJURY AND PROPERTY DAMAGE, WHETHER OR NOT RELATED TO THE GOODS BEING TRANSPORTED.

8. Confidentiality. For two (2) years from the date of disclosure by a Party of any of its proprietary, confidential information, or Intellectual Property as referenced in Section 17.7 ("Confidential Information"), and in the case of Confidential Information that constitutes a trade secret under applicable law for so long as such Confidential Information remains a trade secret, the Party receiving such Confidential Information will not disclose such Confidential Information and shall exercise the same degree of care to avoid disclosure of such Confidential Information as it employs with respect to its own Confidential Information, but not less than reasonable care. Confidential Information shall not include such information that: (a) is now or hereafter becomes publicly known without violation of this Agreement; (b) was known to the recipient prior to the time of disclosure without obligation to preserve confidentiality; (c) was received by the recipient from a third party legally entitled to disclose the information without obligation to preserve confidentiality; (d) was independently developed by the recipient; or (e) is authorized to be disclosed by the disclosing Party. In addition, if the recipient receives a subpoena or other process demanding the disclosing Party's Confidential Information, the recipient may comply with the demand, in which case the recipient will inform the disclosing Party and allow the disclosing Party reasonable time to seek a protective order. Client Confidential Information shall not include: (i) information contained on the exterior of a package, including information contained in plain text or bar code form on shipping labels, or (ii) package level detail or smart label information, including but not limited to, consignee's full name, complete delivery address, package weight and zone, and package labeling that contains Maxicode, postal barcode, current routing code, appropriate service level icon, a 1Z tracking number bar code and address details related thereto ("PLD") and delivery information (collectively, 'Shipping Information"). SCS will use Shipping Information only as permitted by the UPS Privacy Policy located at www.ups.com and in effect at the time of shipping or as permitted by law.

9. Force Majeure. "Force Majeure Event" shall mean any event beyond a Party's control, including but not limited to: acts of war, acts of public enemies, terrorist attacks, governmental orders relating to the foregoing, insurrections, riots, sabotage, earthquakes, floods, acts of God, embargoes, authority of laws, labor disputes (including strikes, lockouts, job actions or boycotts), fires, or explosions. To the extent that either Party's performance (except payment obligations) is precluded or delayed by a "Force Majeure Event" such performance shall be excused for the time necessitated by such Force Majeure Event. If SCS takes steps outside the ordinary course of business to protect Products due to a Force Majeure Event, Client shall pay the storage or other similar charges associated with SCS's efforts.

10. Insurance. Each Party shall maintain commercial general liability insurance including premises or operations, broad form property damage, independent contractors, and contractual liability covering its obligations hereunder for bodily injury and property

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damage, with a combined single limit of not less than $1,000,000 each occurrence. In addition, SCS shall maintain workers' compensation insurance in statutory amounts covering SCS and its employees, and employer's liability insurance, and Client shall maintain, during the term of this Agreement, product liability insurance in an amount not less than $5,000,000 on a per occurrence basis. All insurance required herein shall be carried with insurance companies licensed to do business in the state(s) where operations are maintained. All policies shall provide that such coverage under these policies shall not be canceled or materially changed without at least thirty (30) days prior written notice to the other Party. The Client shall cause to be included in any such policies a clause by which the insurer waives any right of subrogation against SCS. Client shall deliver to SCS, upon SCS's request, certificates of insurance of evidence of the required coverage.

11. Independent Contractor. SCS is an independent contractor under this Agreement. It shall comply with all payroll tax withholdings, social security, unemployment and related employer obligations applicable to it. Except as set forth in a duly authorized Power of Attorney, SCS shall not hold itself out as an agent of or in a joint venture with Client, and SCS shall have no authority to act on behalf of Client.

12. Subcontractors. SCS may subcontract all or portions of the Services to its parent, affiliates or third party service providers and may disclose to such entities any Client Confidential Information necessary to perform the Services and as permitted by the UPS Privacy Policy in effect at the time of performance which is located at www.ups.com. Client hereby authorizes and appoints SCS (including its successors or assigns) to share records referenced in 19 C.F.R., Parts 111 and 163, including any documents, data or information pertaining to the business of Client, with any or all of the subsidiaries and divisions of United Parcel Service, Inc. Subject to the limitations on liability set forth in Section 6 of this MSA, to the extent that SCS subcontracts any Services, SCS will remain liable to Client as if SCS has performed the Services itself.

13. Hazardous Materials, Dangerous Products and Other Regulated Products. Unless SCS expressly agrees in a Schedule, SCS will not handle, receive, accept, ship, carry, dispose of, transport, store, or arrange for the handling, disposal, storage or transportation of: (a) any type of hazardous materials, dangerous products, or Products containing hazardous materials or dangerous products, or (b) any type of Products which may be regulated by a governmental body, entity or agency, including but not limited to those Products which are regulated by the United States Food and Drug Administration, the United States Department of Agriculture, the United States Drug Enforcement Administration, the United States Bureau of Alcohol, Tobacco, Firearms and Explosives, and analogous regulatory agencies in countries in which the Services are provided (collectively, "Hazardous, Dangerous or Regulated Products"). Client warrants and covenants that it will not itself or through others offer, present or otherwise tender any Hazardous, Dangerous or Regulated Products to SCS, its affiliates, assignees, agents or subcontractors under this Agreement. Notwithstanding the foregoing, SCS may take any action that SCS, in its sole discretion, deems appropriate or necessary in relation to any actual or suspected Hazardous, Dangerous or Regulated Products. Client hereby fully and completely releases and forever discharges SCS and its Indemnitees from and against all Claims arising out of or caused by actual or suspected Hazardous, Dangerous or Regulated Products. Client shall indemnify, defend, and hold harmless SCS and its Indemnitees from and against all Claims related to or arising out of any SCS action taken in relation to such actual or suspected Hazardous, Dangerous or Regulated Products, Client's noncompliance with applicable laws and regulations, or the breach of any covenant of Client contained in or made pursuant to this Section.

14. Dispute Resolution Process.

14.1 Dispute Resolution. The Parties agree to utilize the dispute resolution process to resolve any disputes, claim or question between them with respect to this Agreement ("Dispute") as expeditiously as possible. The Parties shall keep confidential, and shall not disclose to any person except as may be required by law, all aspects of the Dispute and the Dispute resolution process. Dispute resolution is intended to be the sole and exclusive remedy (other than equitable remedies) of the Parties with respect to any Dispute. One Party shall give written notice to the other Party of the Dispute and request commencement of the Dispute resolution process. Then, the project managers from each Party shall meet within five (5) business days to negotiate and use commercially reasonable efforts to promptly reach a resolution of the Dispute. If the Dispute is not resolved by the project managers, either Party may give notice to the other Party that the Dispute must be escalated to the senior officers of each Party, who will meet within ten (10) business days to negotiate and use commercially reasonable efforts to resolve the Dispute. The Parties may mutually agree to extend the period for resolution of the Dispute.

14.2 Arbitration. Any Dispute that cannot be resolved through the Dispute resolution process set forth above shall be settled by binding arbitration held in Delaware, unless the Parties mutually agree on a different location, and administered by the American Arbitration Association in accordance with its Commercial Arbitration Rules, and judgment on the award rendered by the arbitrator(s) may be entered in any court having jurisdiction thereof. The Parties will share the arbitrator costs, and each Party shall bear its own attorneys' fees and expenses.

15. Warranties. ANY WARRANTIES OF THE PARTIES EXPRESSLY SET FORTH IN THIS AGREEMENT ARE THE SOLE WARRANTIES MADE BY THE PARTIES AND ARE IN LIEU OF ALL OTHER WARRANTIES, EXPRESS, IMPLIED, OR STATUTORY, INCLUDING BUT NOT LIMITED TO IMPLIED WARRANTIES OF MERCHANTABILITY AND/OR FITNESS FOR A PARTICULAR PURPOSE. IN ANY JURISDICTION WHICH DOES NOT ALLOW THE EXCLUSION OR

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LIMITATION OF IMPLIED WARRANTIES, ANY IMPLIED WARRANTIES, TO THE MAXIMUM EXTENT PERMITTED BY THE APPLICABLE LAWS OF ANY SUCH JURISDICTION, SHALL BE LIMITED TO THE TERM OF THIS AGREEMENT. IN ALL INSTANCES, CLIENT'S SOLE REMEDY FOR BREACH OF ANY SUCH WARRANTY SHALL BE LIMITED TO THE REPERFORMANCE OF THE SERVICE AT ISSUE.

16. Import and Export Laws. The Parties acknowledge and agree that all activities hereunder, including the export, re-export, import, trans-shipment, transfer, and release of all Products, software, and technology are subject to all applicable U.S. and non-U.S. laws governing the import and export of Products, including, but not limited to, laws concerning export and economic sanctions, customs and related laws, other laws and executive orders of similar import, and any and all regulations and other measures promulgated pursuant to such laws or executive orders (collectively, "Import and Export Laws"). Client agrees to act as the "importer," "exporter," or other responsible party (as the case may be) under all Import and Export Laws and, in such capacity, is solely responsible for properly classifying under the Import and Export Laws all Products, software, and technology shipped between countries. Client is also responsible for providing written instructions to SCS or the carrier regarding any export, re-export, delivery, pickup, or other activity in relation to any Products, software, and technology, which instructions shall be in compliance with all Import and Export Laws. Client is solely responsible for complying with all Import and Export Laws applicable to the export of any Products, software, and technology from any country, including obtaining any required licenses and other authorizations for export, correctly completing and filing with any government, as appropriate, all export-related documents required under the Import and Export Laws, and ensuring that all export-related documents, including shipping and sales documents, generated in connection with the Services performed pursuant to this Agreement conform to and are maintained in accordance with the Import and Export Laws. Client will indemnify, defend, and hold harmless SCS and its Indemnitees from and against all Claims or investigations arising out of or in connection with Client's breach of this Section or SCS's or the carrier's compliance with Client's instructions in the export, re-export, delivery, pickup, or other activity in relation to any Products, software, and technology.

17. General Provisions.

17.1 Assignment; Third Party Beneficiaries. The rights and obligations under this Agreement may not be transferred or assigned to a third party by either Party without the prior written consent of the other Party; either party may transfer or assign all or part of its rights and/or obligations of this Agreement to one or more of its parent or affiliates. Under no circumstances may Client resell any of the Services to any third party without the express written consent of SCS. There are no third party beneficiaries under this Agreement, except that SCS's affiliates that perform Services are third party beneficiaries of SCS's rights, remedies and benefits under this Agreement.

17.2 Amendments; Waiver; Severability. This Agreement can only be modified or amended by a written instrument signed by the Parties. A waiver of any right by either Party will not constitute a waiver of such right on any subsequent occasion. Acceptance by SCS of the amounts (or lesser amounts) payable under this Agreement shall not be deemed a waiver of any default. If any provision of this Agreement is determined to be invalid, such invalidity will not affect the validity of the remaining portions of this Agreement.

17.3 Survival. The rights and obligations of this Agreement which by their nature are intended to survive expiration or termination shall so survive, including but not limited to: Sections 3, 4, 5, 6, 7, 8, 13, 14, 15, 16 and 17.

17.4 Controlling Law. This Agreement shall be governed by the laws of the State of Delaware without regard to conflicts of laws provisions.

17.5 No Use of Trademarks. Neither Party shall use the other Party's or its affiliates' corporate name or logo without the other Party's prior written consent; provided however, SCS may disclose Client's name as a reference to any current or prospective customer.

17.6 Non-Solicitation of Personnel. During the term of this Agreement and for two (2) years after its expiration or termination, neither Party shall actively solicit the employment of any employee of the other Party, which employee was engaged in the performance of this Agreement. Notwithstanding the foregoing, neither Party shall be precluded from conducting general recruiting activities, such as participating in job fairs or publishing advertisements for general circulation.

17.7 Intellectual Property Rights. Client and SCS acknowledge that the other has certain intellectual property rights that may be revealed or provided to the other Party in accordance with this Agreement. Each Party acknowledges that this Agreement does not grant any right or title of ownership in their respective intellectual property rights to the other unless specifically provided in this Agreement. Any intellectual property shall remain the originator's property unless otherwise provided herein.

17.8 No Breach of Other Agreements. Client and SCS each respectively represent and warrant that its execution of this Agreement does not violate any applicable law or breach any other agreement to which it is a Party or is otherwise bound.

17.9 Notice. Any notice required or permitted to be given shall, except where specifically provided otherwise, be given in writing to the person and at the address listed below by personal delivery, UPS Next Day Air® or certified mail, return receipt

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requested. The date of notice shall be as follows: the date upon which such notice is so personally delivered; if by UPS Next Day Air®, the date of receipt at the designated address; or if by certified mail, the date of delivery.

To SCS:	UPS Supply Chain Solutions, Inc. Contracts and Compliance Department 12380 Morris Road Alpharetta, GA 30005	with Copy to:	United Parcel Service, Inc. Office of General Counsel 55 Glenlake Parkway Atlanta, GA 30328
To Client:	Actavis , Inc. Attn: 990 Riverview Drive Totowa, NJ 07512	with Copy to:_	

17.10 Entire Agreement. This Agreement sets forth the full and complete understanding of the Parties with respect to the matters herein and supersedes any and all agreements and representations between the Parties made or dated prior to the Effective Date, including any agreements regarding confidentiality.

In witness whereof, the Parties hereto have caused this Agreement to be executed by their duly authorized representative as of the Effective Date.

UPS SUPPLY CHAIN SOLUTIONS, INC.
"SCS"

Marvin B. Hatley
Signature

Marvin B. Hatley
Printed Name

Coordinator, Global Contracts
Title

11-29-2006
Date

ACTAVIS, INC.
"CLIENT"

Steinthor Palsson
Signature

Steinthor Palsson
Printed Name

Executive Vice President Operations
Title

November 6, 2006
Date

REVIEWED LEGAL DEPT.

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Confidential & Proprietary

Master Services Agreement

UPS Supply Chain Solutions, Inc.

and

Actavis, Inc.

Summary of Services

Service Schedule No. 1	**Goods Regulated by the Food and Drug Administration**
Service Schedule No. 2	**Warehousing of Hazardous Materials**
Service Schedule No. 3	**Warehouse Distribution Services** **A. Statement of Work** **B. Fees** **C. Operating Parameters** **D. Termination Costs** **E. Product List** **F. Key Performance Indicators**
Service Schedule No. 4	**Transportation Services** **A. Fees** **B. Operating Parameters**

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UPS Supply Chain Solutions
Global Contracts
12380 Morris Road
Alpharetta, GA 30005

November 9, 2006

Steinthor Palsson
Executive Vice President Operations
Actavis Inc
990 Riverview Drive
Totowa NJ 07512

Dear Mr. Palsson:

Please find attached the executed copies of the Master Services Agreement and Service Schedules, dated November 6, 2006

We look forward to a successful association with Actavis Inc.

If you have any questions or concerns, please feel free to contact our office.

Yours truly,

Terri Coons Nurkala
Global Contracts – Administrative Assistant

tcn/tcn

Enclosure

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